

TO BE COMPLETED FOR EVERY SALE BY COURT APPOINTED REFEREE AND FILED WITH COUNTY CLERK AND CHAMBERS WITHIN 30 DAYS OF SALE

FORECLOSURE ACTION SURPLUS MONIES FORM

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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U.S. BANK TRUST NATIONAL ASSOCIATION NOT IN ITS Part _____

INDIVIDUAL CAPACITY BUT SOLELY AS OWNER

TRUSTEE FOR RCAF ACQUISITION TRUST,

Hon. FRANCIS A. KAHN, III

Plaintiff,

Index No. 850632/2023

- against -

KELLY J. CONDON A/K/A KELLY CONDON, BOARD OF
MANAGERS OF THE RUPPERT YORKVILLE TOWERS
CONDOMINIUM, NEW YORK STATE DEPARTMENT OF
TAXATION AND FINANCE,

Defendant(s).

----- X

Property Address: 1601 3rd Avenue, Apt 28C, New York, NY 10128

Sale Date: 5/26/2026

A. Were there surplus funds? ☐ Yes ☒ NoB. To be completed by the Referee

Amount of final judgment of foreclosure

\$766,031.08

Sale price of property

\$799,075.13

Upset price

\$799,075.13

Surplus amount

\$0.00

C. To be completed by Referee conducting the sale (please print)Name: CHRISTY M. DEMELFI, ESQ. Telephone: 516-887-1975Address: 2280 GRAND AVENUE, SUITE 202 BALDWIN, NY 11510E-mail Address: REFEREECHRISTY@GREENBERGMEROLA.COMSignature and Date: Christy M. Demelfi 5/26/26D. To be completed by Plaintiff's RepresentativeE. To be completed by Purchaser

Name (please print)

Name (please print)

US Bank c/o

Address: _____

Aldridge Pite LLC

E-mail Address: _____

40 Marcus Drive, Suite 200

Telephone: _____

Melville, NY 11747

Signature and Date: _____

Signature and Date: _____